



CHAPTER xxvi.

An Act to confer powers on the mayor aldermen and burgesses of the county borough of Halifax for the construction of tramways to provide and run trolley vehicles and omnibuses and to make further provision with regard to their tramway undertaking and for other purposes. A.D. 1915.
[24th June 1915.]

WHEREAS the county borough of Halifax in the west riding of the county of York (hereinafter in this Act referred to as "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act referred to as "the Corporation"):

And whereas the Corporation have under the authority of Parliament constructed and are working tramways within and beyond the borough and it is expedient that the Corporation should be empowered to construct and maintain the additional tramways in this Act described and to work the same by mechanical power:

And whereas the Corporation are under the authority of Parliament empowered to provide and work mechanically propelled vehicles adapted for use upon roads and moved by electrical power transmitted thereto from some external source (in this Act called "trolley vehicles") upon the route within the borough mentioned in the Halifax Corporation Act 1911 and it is expedient to empower the Corporation to use trolley vehicles upon the additional routes in this Act described:

And whereas it is expedient that provision should be made as in this Act contained with respect to the providing and running by the Corporation of motor omnibuses within and beyond the borough:

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And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to raise moneys which are as follows:—

For the construction of tramways twenty-four thousand eight hundred and fifty-four pounds;

For the provision of tramway rolling stock seven thousand two hundred pounds;

For the provision of the trolley vehicles authorised by this Act five thousand one hundred pounds;

For the provision of electrical equipment and other works in connection with the tramways and trolley vehicles by this Act authorised eleven thousand six hundred and sixteen pounds;

For the extension of the tramway dépôt in Skircoat Road six thousand pounds;

For the provision of motor omnibuses three thousand six hundred pounds:

And whereas the several works and purposes mentioned in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Corporation should be authorised to raise moneys for the purposes aforesaid:

And whereas plans and sections showing the lines and levels of the tramways authorised by this Act and also a book of reference to such plans have been deposited with the clerk of the peace for the west riding of the county of York which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the Halifax Corporation Act 1915. A.D. 1915.
Short title.

2. Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 are (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) hereby incorporated with this Act. Incorporation of provisions of Tramways Act 1870.

3. In this Act unless the subject or context otherwise requires— Interpretation.

“The borough” means the county borough of Halifax;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The borough fund” and “borough rate” mean respectively the borough fund and borough rate of the borough;

“The district fund” and “general district rate” mean respectively the district fund and the general district rate of the borough;

“The tramways” means and includes the tramways by this Act authorised;

“The Corporation tramways” means the tramways authorised by this Act and all tramways and tramroads for the time being belonging to or leased or worked by the Corporation and includes any vehicles moved by mechanical power transmitted to such vehicles from some external source;

“Road authority” means as regards any main road the county council of the west riding of Yorkshire and as regards any other road the district council company body or person by whom such road is repairable;

“The tramway undertaking” means the tramway undertaking of the Corporation for the time being authorised;

“The Act of 1888” means the Halifax Corporation Waterworks Act 1888;

“The Act of 1897” means the Halifax Corporation Tramways Act 1897;

“The Act of 1898” means the Halifax Corporation Act 1898;

“The Act of 1900” means the Halifax Corporation Act 1900;

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“The Act of 1902” means the Halifax Corporation Act 1902;

“The Act of 1905” means the Halifax Corporation Act 1905;

“The Act of 1911” means the Halifax Corporation Act 1911;

“The Order of 1899” means the Halifax Corporation Tramways Order 1899 confirmed by the Tramways Orders Confirmation (No. 1) Act 1899.

Words and expressions to which meanings are assigned by enactments incorporated with this Act have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Power to
make tram-
ways.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places triangles waiting-rooms stables carriage-houses engine-houses stations sheds buildings works and conveniences connected therewith (that is to say):--

Tramway No. 2 1 mile 2 furlongs 9 chains in length whereof 6 furlongs 9 chains will be single line and 4 furlongs will be double line situate partly in the urban district of Greetland and partly in the urban district of Stainland-with-Old Lindley commencing by a junction with the existing tramway in Halifax Road in the urban district of Greetland at the junction of Halifax Road and Saddleworth Road passing thence along Halifax Road and Stainland Road and terminating in Stainland Road at a point 4 yards east of the west side of Crossfield in the urban district of Stainland-with-Old Lindley:

Tramway No. 8 A single line 6 chains in length wholly situate in the borough commencing by a junction with the existing tramway in King Cross Road at a point 46 yards west of the west side of Wainhouse Road passing thence along King Cross Road and Burnley Road and terminating by a junction with the existing tramway in Burnley Road at a point 27 yards west of the south-west corner of Chapel Road:

Tramway No. 8 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 9 A single line 4 chains in length wholly situate in the urban district of Mytholmroyd commencing by a junction with the existing tramway in Burnley Road at a point opposite the west side of the road leading to Upper White Lee passing thence along Burnley Road and terminating by a junction with the existing tramway in Burnley Road at a point 88 yards west of the said point of commencement : A.D. 1915.

Tramway No. 9 will be a doubling between those points of the existing single line authorised by the Act of 1900 :

Tramway No. 10 A single line 2 furlongs 2 chains in length wholly situate in the urban district of Mytholmroyd commencing by a junction with the existing tramway in Burnley Road at a point 44 yards west of the junction of Burnley Road and Midgley Road passing thence along Burnley Road and terminating by a junction with the existing tramway in Burnley Road at a point 176 yards west of the junction of Burnley Road and Redacre Lane :

Tramway No. 10 will be a doubling between those points of the existing single line authorised by the Act of 1900 :

Tramway No. 11 A single line 4 chains in length wholly situate in the urban district of Sowerby commencing by a junction with the existing tramway in the Rochdale and Oldham Road at a point 198 yards north-east of the entrance gates to Mill House passing thence along the Rochdale and Oldham Road and terminating by a junction with the existing tramway in the Rochdale and Oldham Road at a point 88 yards south-west of the said point of commencement :

Tramway No. 11 will be a doubling between those points of the existing single line authorised by the Act of 1900 :

Tramway No. 12 A single line 1 furlong 7·5 chains in length wholly situate in the borough commencing by a junction with the existing tramway in Bradford Road at a point 40 yards east of the east side of Museum Inn passing thence along Bradford Road and terminating by a junction with Tramway No. 21 authorised by the Act of 1911 in Bradford Road at a point 77 yards west of the west side of the road leading to Upper Brear :

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—

Tramway No. 12 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 13 A single line 1 furlong 4 chains in length wholly situate in the borough commencing by a junction with Tramway No. 21 authorised by the Act of 1911 in Bradford Road at a point 11 yards west of the west side of the road leading to Upper Brear passing thence along Bradford Road and terminating by a junction with the existing tramway in Bradford Road at a point 66 yards north-east of the road leading to Tenterfield House:

Tramway No. 13 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 14 A single line 1 furlong 9 chains in length wholly situate in the borough commencing by a junction with the existing tramway in Bradford Road at a point 143 yards north-east of the road leading to Tenterfield House passing thence along Bradford Road and terminating by a junction with Tramway No. 22 authorised by the Act of 1911 in Bradford Road at a point 39 yards south of the entrance gates to Quarry House:

Tramway No. 14 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 15 A single line 1 furlong 7 chains in length wholly situate in the borough commencing by a junction with Tramway No. 22 authorised by the Act of 1911 in Bradford Road at a point 27 yards north of the entrance gates to Quarry House passing thence along Bradford Road and terminating by a junction with the existing tramway in Bradford Road at a point opposite the north side of Lydgate:

Tramway No. 15 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 16 A single line 1 furlong 7 chains in length situate partly in the borough and partly in the urban district of Shelf commencing by a junction with the existing tramway in Bradford Road in the borough at a point 77 yards north of the junction of Bradford Road and Lydgate passing thence along Bradford Road and terminating by a junction with Tramway No. 23 authorised by the Act of 1911 in Bradford Road in the urban

district of Shelf at a point 41 yards north-east of the boundary between the borough and the urban district of Shelf: A.D. 1915.

Tramway No. 16 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 17 A single line 1 furlong 6 chains in length wholly situate in the urban district of Shelf commencing by a junction with Tramway No. 23 authorised by the Act of 1911 in Bradford Road at a point 107 yards north-east of the boundary between the borough and the urban district of Shelf passing thence along Bradford Road and terminating by a junction with the existing tramway in Bradford Road at a point 99 yards south-west of the junction of Bradford Road and Denholme Gate Road:

Tramway No. 17 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 18 A single line 1 furlong 7 chains in length wholly situate in the urban district of Shelf commencing by a junction with the existing tramway in Bradford Road at a point 22 yards south-west of the junction of Bradford Road and Denholme Gate Road passing thence along Bradford Road and terminating by a junction with Tramway No. 24 authorised by the Act of 1911 in Bradford Road at a point opposite the south side of Clough House:

Tramway No. 18 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 19 A single line 1 furlong 6·5 chains in length wholly situate in the urban district of Shelf commencing by a junction with Tramway No. 24 authorised by the Act of 1911 in Bradford Road at a point 67 yards north of the south side of Clough House passing thence along Bradford Road and terminating in Bradford Road at a point 40 yards south of the south corner of the "Bottomley Arms" public-house:

Tramway No. 19 will be a doubling between those points of the existing single line authorised by the Act of 1900:

Tramway No. 20 A single line 1·5 chains in length wholly situate in the borough commencing by a junction with the existing tramway in Northgate at a point 4 yards south of the south side of Park Street passing thence along

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Northgate and Park Street and terminating by a junction with Tramway No. 36 authorised by the Act of 1911 in Park Street at a point 18 yards east of the east side of Northgate.

Tramways to be part of tramway undertaking of Corporation.

5. The tramways shall subject to the provisions of this Act be deemed for all purposes part of the tramway undertaking of the Corporation.

Period for completion of works.

6. The tramways shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Applying certain provisions of local Acts to tramways.

7. The following sections of the following Acts and Order shall so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the tramways or tramway works by this Act authorised:—

Of the Act of 1897—

Section 7 (Inspection by Board of Trade).

Section 8 (Tramways to be kept on level of surface of road).

Section 9 (Provisions as to construction of tramways).

Section 11 (As to rails of tramways).

Section 12 (Penalty for not maintaining rails and roads).

Section 13 (Passing places to be constructed where less than a certain width left between footway and tramway).

Section 15 (Temporary tramways may be made where necessary).

Section 20 (Rates for passengers).

Section 21 (Passengers' luggage).

Section 22 (Animals goods &c.).

Section 23 (Traffic upon tramways).

Section 24 (Corporation not bound to carry animals goods &c.).

Section 25 (Heavy traffic confined to certain hours).

Section 27 (Payment of tolls).

Section 28 (Periodical revision of rates and charges).

- Section 29 (Motive power).
- Section 30 (Penalty for using mechanical power contrary to Act or regulations).
- Section 31 (Definition of mechanical power and power to generate electricity).
- Section 32 (Restrictions on use of electric power).
- Section 33 (Power to acquire patent rights).
- Section 34 (Byelaws by Board of Trade).
- Section 36 (Amendment of the Tramways Act 1870 as to byelaws by local authority).
- Section 37 (Orders and byelaws to be signed &c.).
- Section 38 (Railway carriages not to be used on tramways).
- Section 39 (Corporation may use tramways for sanitary purposes).
- Section 40 (Provisions as to arbitration).
- Section 41 (Form and delivery of notices).
- Section 42 (Prohibiting the raising of fares on Sundays and holidays).
- Section 49 (Application of revenue).
- Section 50 (Provision in case of deficiency of revenue of tramways undertaking).
- Section 51 (Provision as to general Tramway Acts).

Of the Order of 1899—

- Section 9 (Mechanical power works to be subject to section 30 of Tramways Act 1870).

Of the Act of 1900—

- Section 85 (Attachment of brackets to buildings).
- Section 86 (Power to Corporation to work tramways or tramroads).
- Section 89 (Application of road materials excavated in construction of works).
- Section 90 (Cheap fares for labouring classes).
- Section 91 (Corporation not to carry minerals &c.).

Of the Act of 1902—

- Section 30 (For protection of company of proprietors of Calder and Hebble Navigation).
- Section 31 (For protection of county council).

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Section 32 (For protection of Postmaster-General).

Section 34 (For protection of Fielden Joint Hospital Committee).

Section 37 (Tramway waiting-rooms).

Section 38 (Power to enforce queue system on tramways).

Section 39 (Corporation may carry minerals &c. to and from railway stations).

Section 116 (Temporary stoppage of streets).

Of the Act of 1905—

Section 22 (Power to make additional crossovers and to double tramway lines).

Section 23 (Power to lay and maintain pipes and make openings in streets).

Section 24 (Power to place posts wires &c.).

Section 25 (Stopping of roads during execution of works).

Section 27 (As to removal of snow &c.).

Section 28 (Penalty for malicious damage).

Of the Act of 1911—

Section 6 (Gauge of tramways and width of carriages).

Section 10 (For protection of War Department).

Section 12 (For protection of West Riding County Council).

Section 24 (Use of tramway posts by Postmaster-General):

Provided that no post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

For protection of West Riding County Council.

8. The following provisions for the protection of the county council of the west riding of Yorkshire (in this section called "the county council") shall notwithstanding anything in this Act contained and unless otherwise agreed in writing apply and have effect with respect to the construction of tramways on main roads and bridges repairable by or at the expense of the county council:—

- (1) The tramways shall not be constructed on any main road until the metalled carriageway of such road has been widened by the Corporation to such extent as

can be effected by utilising any unmetalled ground or grass verge at the sides of the said road: A.D. 1915.

(2) The tramways shall not in any case be constructed on a main road in such a position as to leave less than two feet nine inches between any building wall or fence and the nearest rail or less than two feet nine inches between the kerb of any footpath and such rail:

(3) —(a) Where any macadamized margin of the carriageway less than six feet six inches in width exists at either side of the tramway track between the edge of such tramway track and the kerb of the footpath or the fence or boundary as the case may be of a main road the Corporation shall if required by the county council pave such margin or margins and the cost of such paving shall be borne in equal shares by the Corporation and the county council:

(b) The said portions of the road so paved as aforesaid shall thereafter be maintained by the authority liable for the maintenance of main roads in the district:

(c) "Tramway track" in this section means so much of the road whereon the tramway is laid as lies between the rails of the tramway and (where double lines are laid) the portion of the road between each tramway and in every case so much of the road as extends eighteen inches beyond the rails of and on each side of the tramway:

(4) Before commencing to construct the tramways in a main road in any position other than that shown on the deposited plans the Corporation shall deliver to the county council a plan showing the proposed position thereof in the road. If the county council have any objection to the construction of the tramway in accordance with such plan they shall give notice thereof in writing to the Corporation and if the county council and the Corporation are unable to agree as to the said plan any difference between them shall be determined as hereinafter provided. Provided that if the county council do not give such notice within twenty-eight days after receiving the said plan they shall be taken to have agreed thereto:

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- (5) The Corporation shall at all times during the construction repair or renewal of the tramways or any part thereof in a main road make all necessary and reasonable provisions for the proper regulation of the ordinary traffic of the road and shall keep unobstructed so much of the road as the surveyor of the county council shall reasonably deem adequate for the free and safe passage thereon of vehicles and foot passengers and shall after the completion of the part of the tramway under construction restore the surface of that portion of the road so required to be kept unobstructed to a condition of repair equal to that in which the same was prior to the commencement of the works :
- (6)—(a) Before commencing to construct any tramway on any bridge repairable by the county council the Corporation shall deliver to the county council a plan section and specification showing the proposed position (if altered from that shown on the deposited plans) and mode of construction. If the county council have any objection to the construction of the tramway in accordance with such plan they shall give notice thereof in writing to the Corporation and any difference arising between them in regard thereto shall be determined as hereinafter provided but if the county council do not give such notice within fourteen days after receiving the said plan they shall be taken to have agreed thereto :
- (b) The Corporation shall not without the consent in writing of the county council execute in the construction or alteration of any tramway any works which affect or interfere with the structural works of any such bridge :
- (c) The Corporation shall not without the consent in writing of the county council place erect or attach any post or other support for any wire or any feeder box on or to the structure of any such bridge which consent shall not be unreasonably withheld :
- (7) The consent of the county council shall be necessary to any doubling of Tramway No. 2 by this Act authorised under subsection (2) of section 22 (Power to make

additional cross-overs and to double tramway lines) of the Act of 1905: A.D. 1915.

- (8) If any difference arises between the Corporation and the county council under the foregoing provisions of this section such difference shall be determined by arbitration by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party.

9. As from the passing of this Act the Act of 1911 shall as amended by this Act apply and have effect as if the following routes were therein mentioned in addition to the route described in section 13 (Power to use trolley vehicles) of that Act:— Additional
trolley
vehicle
routes.

Route No. 1 Commencing in Spring Hall Lane at the junction of Spring Hall Lane and Pellon New Road passing thence along Spring Hall Lane Pellon New Road Moor End Road Mount Tabor Road and Slode Lane and terminating in Slode Lane at its junction with Folly Hall Road and Cold Edge Road:

Route No. 2 Commencing in Skircoat Road at a point 10 yards north of the junction of Skircoat Road and Oxford Road passing thence along Skircoat Road Oxford Road Hunger Hill Water Lane Siddal New Road Whitegate Road and Oxford Lane and terminating in Oxford Lane at a point 30 yards north of the north side of Cinderhills Lane.

10.—(1) The Corporation may with the consent of the Board of Trade provide maintain work and use trailer carriages and coupled carriages on the Corporation tramways on such routes and at such times as the Board of Trade may approve and for such periods and on such terms and conditions as may be expressed in such approval and the Board of Trade may revoke any such approval or alter the terms and conditions of any such approval. Power to use
trailer and
coupled
carriages.

(2) The trailer carriages and coupled carriages used by the Corporation under the provisions of this section shall be fitted with such brakes and safety appliances as the Board of Trade may approve and no trailer carriage or coupled carriage shall be used by the Corporation unless the design thereof has been approved by the Board of Trade.

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(3) Except so far as the Board of Trade may otherwise allow the number of carriages or vehicles which may be used or run attached together shall not in any case exceed two.

Through
cars.

11. The Corporation may run through cars along any routes of the Corporation tramways or any specified portion thereof and the Corporation may demand and take from all passengers by such through cars irrespective of their destination a fare or charge not exceeding the maximum fare which the Corporation are empowered to charge for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car Provided that the running of such cars shall in no way curtail the ordinary service of cars.

Attachment
of signs in-
dicating
stopping
places to
lamp-posts
&c.

12.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of the Corporation tramways and omnibuses signs or directions indicating the position of stopping places for tramways trolley vehicles and omnibuses Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to the Lancashire and Yorkshire and Great Northern Railway Companies or either of them except with the consent in writing of such company.

(5) The Corporation shall not attach any such sign or direction to any pole post or standard in the borough of Brighouse belonging to the corporation of Brighouse except with the consent of that corporation.

13. The Corporation shall not exhibit or permit the exhibition of advertisements on any posts or standards of the Corporation erected in any street other than advertisements relating to the service of the tramcars trolley vehicles and omnibuses or for the exhibition of which no consideration is paid In case of any contravention of the provisions of this section the Corporation shall be liable to a penalty not exceeding five pounds.

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Posts are not to be used for advertisements.

14. The following agreements (namely):—

Confirmation of scheduled agreements.

Agreement made the thirty-first day of December one thousand nine hundred and fourteen between the Corporation and the Greetland Urban District Council;

Agreement made the thirty-first day of December one thousand nine hundred and fourteen between the Corporation and the Stainland-with-Old Lindley Urban District Council;

Agreement made the fifth day of January one thousand nine hundred and fifteen between the Corporation and the Shelf Urban District Council;

Agreement made the twelfth day of January one thousand nine hundred and fifteen between the Corporation and the Luddenden Foot Urban District Council;

Agreement made the twelfth day of January one thousand nine hundred and fifteen between the Corporation and the Mytholmroyd Urban District Council;

Agreement made the twelfth day of January one thousand nine hundred and fifteen between the Corporation and the Sowerby Bridge Urban District Council; and

Agreement made the sixteenth day of February one thousand nine hundred and fifteen between the Corporation and the Sowerby Urban District Council;

as set forth in the schedule to this Act are hereby respectively confirmed and made binding on the parties thereto.

15. The powers of section 25 (Power to provide and run omnibuses) of the Act of 1911 shall extend to enable the Corporation to provide and run motor omnibuses along any streets or roads within the borough and along the following routes outside the borough (that is to say):—

Additional powers as to omnibuses.

Route (A) In the urban district of Sowerby and in the urban district of Soyland commencing in the Rochdale

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and Oldham Road in the urban district of Sowerby at a point 176 yards north-east of the north-east side of Butterworth Lane passing thence along the Rochdale and Oldham Road and Oldham Road and terminating in Oldham Road in the urban district of Soyland at a point 99 yards south-west of the south-west side of Elland Road;

Route (B) In the urban district of Mytholmroyd commencing in Burnley Road at the junction of Burnley Road and New Road passing thence along New Road Brook Street and Rochdale Road and terminating in Rochdale Road at a point opposite the north-east corner of Church Bank Mills Cragg Vale;

and with the consent of the Board of Trade and the local authority and the road authority along any other route outside the borough:

Provided that this section shall in no way enable the Corporation to run motor omnibuses along any route outside the borough where the Bradford Corporation have or are authorised to have tramways or trolley vehicles:

Provided also that this section shall in no way enable the Corporation to run motor omnibuses along any road outside the borough where the Huddersfield Corporation have or are for the time being authorised to have tramways or in competition with any such tramways:

Provided further that the Corporation shall prior to making any application to the Board of Trade for their consent under this section give notice thereof by advertisement in the London Gazette.

As to road
maintenance.

16.—(1) The Corporation shall pay to the road authority an annual sum equal to three-eighths of a penny per car mile run by motor omnibuses of the Corporation over any road along which motor omnibuses are authorised to be run by this Act towards the cost of the maintenance of such road All sums of money payable to the road authority under the provisions of this section shall be deemed to be a debt due to the road authority and recoverable from the Corporation accordingly.

(2) The Corporation shall keep statements for the purposes of this section showing in proper detail the mileage run by each motor omnibus on any such road and shall furnish copies

of such statements annually to the road authority and the Corporation shall allow any person duly authorised by the road authority in that behalf at all reasonable times to inspect and take copies of all such statements and any accounts kept by the Corporation relating to the running of all such motor omnibuses. A.D. 1915.

(3) In consideration of the payments to be made by the Corporation to the road authority the road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any road by the motor omnibuses of the Corporation.

(4) Any difference at any time arising between the road authority and the Corporation as to the sum from time to time payable under the provisions of this section shall be settled by an arbitrator to be agreed upon between the road authority and the Corporation or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

17.—(1) The provisions of section 21 (For protection of railway companies) of the Act of 1911 shall be observed and have effect in relation to the exercise of the powers of this Act as if it had been expressly re-enacted herein. For protection of railway companies.

(2) For the purposes of the sections of this Act whereof the marginal notes are "Additional powers as to omnibuses" and "As to road maintenance" the Lancashire and Yorkshire Railway Company and the Great Northern Railway Company or either of them shall as regards any road or bridge maintainable by them respectively be deemed to be the road authority.

18. The Corporation may erect and maintain within and with the consent of the local and road authority beyond the borough sheds shelters or waiting-rooms for the accommodation of passengers and of the Corporation's servants on the tramways and trolley vehicles and motor omnibus routes of the Corporation Shelters or waiting-rooms.

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Provided that no sheds shelters or waiting-rooms shall be erected or maintained in any street or road so as to cause interference with or render less convenient the access to or exit from any station or property of the Lancashire and Yorkshire and Great Northern Railway Companies or either of them.

Lopping of trees overhanging trolley vehicle and tramway routes.

19.—(1) Where any tree overhangs any highway along their trolley vehicle or tramway routes which may in any way interfere with the construction or working of the trolley vehicles tramways or trolley wires or with the clear and safe passage of the trolley vehicles or tramways and the passengers thereon the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to lop the tree within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

(4) Section 26 of the Act of 1905 (Corporation may lop trees overhanging public highway) is hereby repealed.

Power to borrow.

20.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely):—

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Purpose.	Amount.	Period for Repayment.
(a) For and in connection with the construction of the tramways authorised by this Act.	£ 24,854	Thirty years from the date or dates of borrowing.
(b) For the provision of tramway rolling stock	7,200	Fifteen years from the date or dates of borrowing.
(c) For the provision of the trolley vehicles authorised by this Act.	5,100	Ten years from the date or dates of borrowing.
(d) For the provision of electrical equipment and the construction of other works for the purpose of the tramways and trolley vehicles authorised by this Act.	11,616	Twenty years from the date or dates of borrowing.
(e) For the extension of the tramway dépôt in Skircoat Road.	6,000	Twenty years from the date or dates of borrowing.
(f) For the provision of motor omnibuses -	3,600	Five years from the date or dates of borrowing.
(g) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that undertaking.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board with whose consent it is borrowed.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes (a) (b) (c) (d) and (e) hereinbefore mentioned and any money borrowed for the purposes of the tramway undertaking of the Corporation the revenue of that undertaking and the borough fund and borough rate or either of those securities:

As regards money borrowed for the purpose (f) the revenue of the omnibus undertaking of the Corporation and the borough fund and borough rate or either of those securities:

A.D. 1915.

As regards money borrowed for the purpose (g) the borough fund and borough rate the district fund and general district rate and the revenues of the respective undertakings of the Corporation in such proportions as the Corporation may determine:

As regards money borrowed with the consent of the Local Government Board such fund rate or revenue as that Board may prescribe:

The provisions of this subsection shall not limit the powers conferred upon the Corporation by section 106 (Power to use one form of mortgage for all purposes) of the Act of 1911:

Provided always that as regards all rates to be laid under the powers of this Act relating to tramways owned leased or worked by the Corporation outside the borough or the running of motor omnibuses outside the borough if at any time such tramways or motor omnibuses are worked at a loss the occupiers of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance and of any land covered with water and used only as a canal or towing-path shall be assessed to such rates in respect of the same in the proportion of one fourth part only of the net annual value thereof and in order to give effect to this section the Corporation shall as far as reasonably practicable keep separate accounts of receipts and expenditure in connection with such tramways and motor omnibuses and such accounts shall at all reasonable times be open to the inspection of the railway and canal company occupying any such land and their officers.

Application
of sections of
local Acts as
to borrowing.

21. The following sections of the following Acts shall (with the necessary modifications and subject to the provisions of this Act) extend and apply mutatis mutandis to the moneys borrowed under this Act (namely):—

Of the Act of 1888—

Section 34 (Mode of raising moneys).

Section 39 (Protection of lender from inquiry).

Of the Act of 1898—

Section 42 (Application of money borrowed).

Section 44 (Sinking fund).

Of the Act of 1902—

A.D. 1915.

Section 94 (Provisions as to mortgages).

Section 95 (Mode of payment off of money borrowed).

Section 102 (Expenses of execution of Act).

Of the Act of 1911—

Section 104 (Corporation not to regard trusts).

22. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act raise or borrow any money other than money required for paying the costs charges and expenses of this Act as hereinafter defined during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on exercise
of borrowing
powers.

23. Whereas under and by virtue of the provisions of the Acts of 1898 and 1902 and of sanctions of the Local Government Board granted under the Electric Lighting Act 1882 or the Act of 1902 certain moneys have from time to time been borrowed by the Corporation on the security of the revenue of the electric lighting undertaking of the Corporation and of the district fund and general district rate of which moneys there is still outstanding the sum of two hundred and six thousand and thirty-five pounds and of such sum the sum of ninety-four thousand five hundred and fifty-eight pounds is in respect of moneys which were required for and expended upon the purposes of the tramway undertaking and it is expedient that the said moneys so borrowed and outstanding as last aforesaid should be transferred to and be charged upon the revenue of the tramway undertaking and the borough fund and borough rate Now therefore it is hereby enacted that the said amount of ninety-four thousand five hundred and fifty-eight pounds borrowed and outstanding as aforesaid be and the same is hereby transferred to and charged upon the revenue of the tramway undertaking and the borough fund and borough rate :

As to moneys
borrowed for
purposes of
electric
lighting and
tramway
under-
takings.

Provided that the total amount payable by the Lancashire and Yorkshire and the Great Northern Railway Companies or either of them in respect of the borough rate and of the general district rate shall be the same as if this section had not been enacted and as if any sum which in pursuance of this section shall be charged upon the revenue of the tramway undertaking or the borough fund or borough rate had been charged upon the district fund and general district rate and the Corporation shall serve with or endorse on the demand

A.D. 1915. — note served on such railway companies or either of them for the general district rate particulars showing how the provisions of this proviso have been given effect to Any difference between the Corporation and such railway companies or either of them under this proviso shall be determined by an arbitrator to be appointed failing agreement by the President of the Institute of Chartered Accountants.

Incorporation of certain sections of local Acts.

24. The following sections of the following Acts are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (namely):—

Of the Act of 1902—

Section 117 (Persons acting in execution of Act not to be personally liable).

Section 119 (Inquiries by Local Government Board).

Section 121 (Authentication and service of notices &c.).

Section 122 (Powers of Act cumulative).

Section 123 (Informations by whom to be laid).

Section 124 (As to committees).

Section 125 (Compensation how to be determined).

Section 126 (As to appeal).

Section 127 (Recovery of penalties &c.).

Section 128 (Penalties to be paid over to treasurer).

Section 129 (Damages and charges to be settled by justices).

Section 131 (Audit of accounts).

Of the Act of 1905—

Section 65 (As to breach of conditions of consent of Corporation).

Section 67 (Crown rights).

Of the Act of 1911—

Section 116 (Evidence of appointments authority &c.).

Section 118 (Consent of Corporation to be in writing).

Section 120 (Recovery of demands).

Section 121 (Saving for indictments &c.).

Section 124 (Judges not disqualified).

Costs of Act.

25. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation.

The SCHEDULE hereinbefore referred to.

A.D. 1915.

MEMORANDUM OF AGREEMENT made this thirty-first day of December one thousand nine hundred and fourteen between the MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HALIFAX (hereinafter called "the Corporation") of the one part and the URBAN DISTRICT COUNCIL FOR THE URBAN DISTRICT OF GREETLAND (hereinafter called "the council") of the other part.

Stamp Ten
Shillings.
Duplicate
Five
Shillings.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 16 authorised by the Halifax Corporation Act 1900 part of which tramway is situate in the urban district of Greetland which district adjoins the borough of Halifax and such part of the said tramway is hereinafter referred to as "the existing tramway":

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of twenty-one years from the time when the Corporation were empowered as aforesaid to construct the existing tramway or within six months after the expiration of every subsequent period of seven years to require the Corporation to sell and the Council may acquire the existing tramway accordingly:

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to run motor omnibuses in the district of the council in connection with or extension of the existing tramway and also for power to construct and work a tramway (hereinafter referred to as "the projected tramway") from a point within the district of the council commencing with a junction of the existing tramway at West Vale along the adjoining road to the boundary of the council's district at Little Bradley and thence in the district of Stainland-with-Old Lindley to a point four yards east of the west side of Crossfield in that urban district:

And whereas in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be amended upon the terms hereinafter contained and it has been agreed in relation to the before-recited matters as hereinafter provided:

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say):—

1. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 or the recited local Act or otherwise the

A.D. 1915. — council shall not exercise any of their powers under the said section with respect to the existing tramway or the portion of the projected tramway situate within the district save as in this agreement hereinafter provided.

2. If the council desire at the expiration of a period of thirty-one years from the date of the Royal Assent to an Act confirming this agreement or of any subsequent period of seven years to acquire the existing tramway and if the projected tramway be sanctioned and constructed so much of such tramway as shall be constructed within their district and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the existing tramway and if the same shall have then been constructed the aforesaid portion of the projected tramway the same shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the existing tramway and the aforesaid portion of the projected tramway as if the same had been one tramway and as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

3. The Corporation shall maintain the projected tramway in the same manner and under the same conditions and obligations as they are subject to in respect of the existing tramway.

4. This agreement shall be deemed to be and shall be within the meaning and for the purposes of the standing orders of the Houses of Parliament and for all other purposes the consent of the council in so far as they can lawfully give such consent (but nothing in this agreement shall relieve the Corporation from obtaining the consent of the county council as provided by Standing Order 22 of the Houses of Parliament) to the running of motor omnibuses in the district of the council by the Corporation and to the construction and making of so much of the projected tramway as will be situate within the said district.

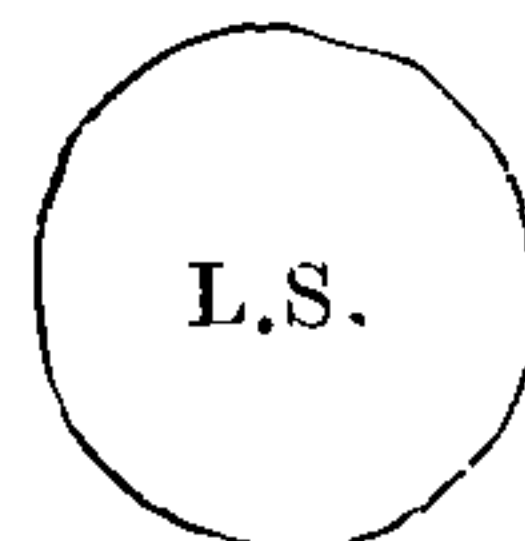
5. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will render to the Corporation at the cost of the Corporation all assistance they can to support such application and other the aforesaid applications of the Corporation to Parliament and will supply such information and give such evidence in connection therewith as may be required.

6. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making

any material alteration therein either party may withdraw from the agreement. A.D. 1915.

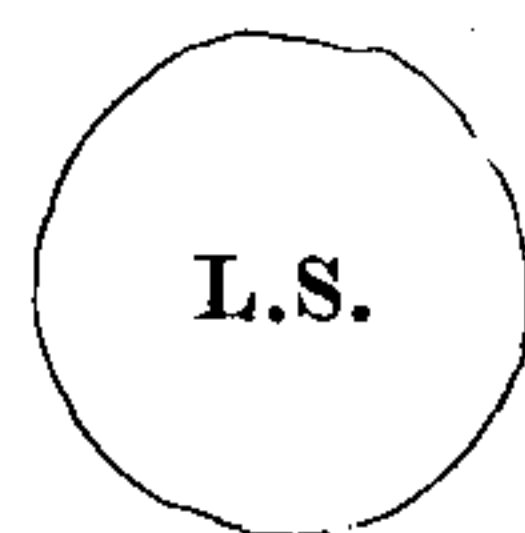
In witness whereof the Corporation have hereunto affixed their corporate common seal and the council have affixed their common seal the day and year first hereinbefore written.

The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax
was hereunto affixed in the presence of



W. H. INGHAM Mayor.
PERCY SAUNDERS Town Clerk.

The common seal of the council was hereunto affixed
in the presence of



WRIGHT HAMER Chairman.
ARTHUR T. LONGBOTHAM Clerk.

AGREEMENT made this thirty-first day of December one thousand nine hundred and fourteen between the MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HALIFAX (hereinafter called "the Corporation") of the one part and the URBAN DISTRICT COUNCIL FOR THE URBAN DISTRICT OF STAINLAND-WITH-OLD LINDLEY (hereinafter referred to as "the council") of the other part.

Stamp Ten
Shillings.
Duplicate
Five
Shillings.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 16 authorised by the Halifax Corporation Act 1900 and some part of the said tramway as was constructed is situate in the urban district of Greetland which adjoins the county borough of Halifax (and such part is hereinafter referred to as "the existing tramway"):

And whereas the urban district of Stainland-with-Old Lindley (hereinafter called "the Stainland-with-Old Lindley district") adjoins the urban district of Greetland:

And whereas there is a considerable inter-communication between the before-mentioned urban districts and the borough of Halifax:

And whereas the council have requested the Corporation to construct and work the tramway (hereinafter referred to as "the projected tramway") from a point within the urban district of Greetland commencing by a junction with the existing tramway in West Vale within that district to a point in the Stainland-with-Old Lindley district four yards east of the west side of Crossfield:

A.D. 1915.

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to construct and work the projected tramway :

Now therefore it is hereby mutually agreed by and between the parties hereto as follows (that is to say) :—

1. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) power to construct the projected tramway by means of either a single line with the necessary loops or double lines the lines to have a gauge of three feet six inches or such other gauge as Parliament may on the application of the Corporation determine and the council shall render all assistance they can to support such application and shall supply such information and give such evidence in connection therewith as may be required but nevertheless at the expense and at the cost of the Corporation.

2. The council shall in so far as the projected tramway is situate within their district permit so far as they lawfully can the Corporation to use all materials now or hereafter to be in upon or under that portion of the roadway in which the projected tramway is to be constructed for the purpose of constructing maintaining and repairing such portions of the roadway as is hereafter agreed to be constructed maintained and repaired by the Corporation Provided that the Corporation shall repair any damage done by them or their agents contractors or workmen during such construction to any water mains or pipes or drains or sewers of the Council now lying under or in connection with any such road or any portion or portions thereof.

3. The Corporation shall maintain and keep in reasonably good condition and repair to the satisfaction of the council so much of the road on which the projected tramway shall be constructed as lies between the tram rails and extends eighteen inches beyond the rails on each side of the tram lines and where there are double lines of rails the space between the two sets of rails.

4. The Corporation shall have power (so far as the council have power to consent thereto) to provide and place apparatus and appliances for or in connection with the electrical or mechanical traction in connection with the projected tramway in over or along or under the roads or streets within the Stainland-with-Old Lindley district over which the projected tramway will pass and so far as the council have power to consent thereto to place shelters poles section-boxes apparatus and appliances for carrying wires at the side of such roads or streets or at the foot thereof as they may consider expedient Provided always that the Corporation shall in carrying out such works use all diligence and shall immediately after the completion thereof restore such roads or streets to their former condition as near as may be having regard to the nature of the works carried on.

A.D. 1915.

5. That notwithstanding anything contained in section 43 of the Tramways Act 1870 or otherwise the council shall not exercise any of their respective powers under the said section with respect to so much of the projected tramway as shall be constructed in the Stainland-with-Old Lindley district (in this clause hereinafter referred to as "the Stainland part of the projected tramway") save as in this agreement hereinafter provided (that is to say) if the council desire at the expiration of a period of thirty-one years from the date of the Royal Assent to an Act confirming this agreement or of any subsequent period of seven years to acquire the Stainland part of the projected tramway and give to the Corporation six calendar months' previous notice in writing under the hand of their clerk for the time being of such their desire and requiring the Corporation to sell the same the Stainland part of the projected tramway shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the Stainland part of the projected tramway as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

6. This agreement shall be deemed to be and shall be within the meaning and for the purpose of the standing orders of the Houses of Parliament and for all other purposes the consent of the council in so far as they can lawfully give such consent to the construction and the working of the projected tramway within the Stainland-with-Old Lindley district.

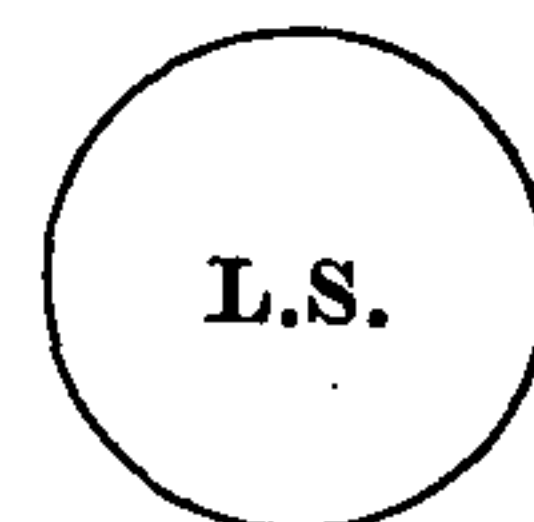
7. This agreement is made subject to confirmation by Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein either party may withdraw from the agreement.

In witness whereof the Corporation have hereunto affixed their corporate common seal and the council have affixed their common seal the day and year first hereinbefore written.

The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax }
was hereunto affixed in the presence of

W. H. INGHAM Mayor.

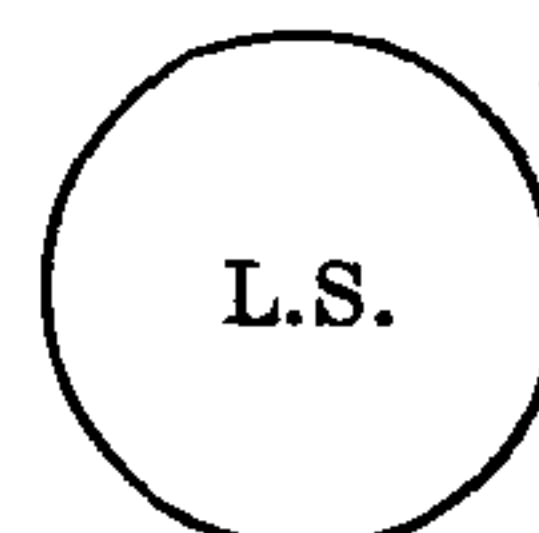
PERCY SAUNDERS Town Clerk.



The common seal of the council was hereunto affixed }
in the presence of

A. W. NORCLIFFE Chairman.

ARTHUR T. LONGBOTHAM Clerk.



A.D. 1915. MEMORANDUM OF AGREEMENT made this fifth day of January
Stamp Ten
Shillings.
Duplicate
Five
Shillings.
one thousand nine hundred and fifteen between the MAYOR
ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF
HALIFAX (hereinafter called "the Corporation") of the one
part and the SHELF URBAN DISTRICT COUNCIL (hereinafter
called "the council") of the other part.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 12 authorised by the Halifax Corporation Act 1900 parts of which tramway are situate in the urban district of Shelf which district adjoins the borough of Halifax and such parts of the said tramway are hereinafter referred to as "the existing tramway":

And whereas the Corporation are by the Halifax Corporation Act 1911 authorised to make Tramways Nos. 23 and 24 in the Act described and such tramways when made will form parts of the existing tramway:

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of twenty-one years from the time when the Corporation were empowered as aforesaid to construct the said tramways or within six months after the expiration of every subsequent period of seven years to require the Corporation to sell and the council may acquire the said tramways accordingly:

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to construct certain other tramways both within and without the borough of Halifax:

And whereas in connection with the said application and in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be amended as hereinafter provided:

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say):—

1. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 or the recited local Act or Acts or otherwise the council shall not exercise any of their powers under the said section with respect to the existing tramway or the aforesaid Tramways Nos. 23 and 24 or other tramways which may be doublings of the existing tramway save as in this agreement hereinafter provided.

2. If the council desire at the expiration of a period of thirty-one years from the date of the Royal Assent to an Act confirming this agreement or of any subsequent period of seven years to acquire the existing tramway and (if the same shall have been constructed) the

aforesaid Tramways Nos. 23 and 24 and other tramways which may be doublings of the existing tramway and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the existing tramway and (if the same shall have then been constructed) the aforesaid Tramways Nos. 23 and 24 and other tramways which may be doublings of the existing tramway the same shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the existing tramway and the aforesaid Tramways Nos. 23 and 24 and other tramways which may be doublings of the existing tramway as if the same had been one tramway and as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

3. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will render to the Corporation all assistance they can to support such application and will at the cost of the Corporation supply such information and give evidence in connection therewith as may be required.

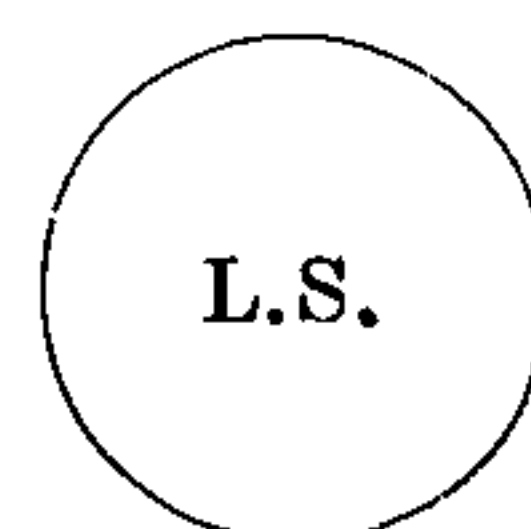
4. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein it shall be competent for either party to withdraw from the agreement.

5. The council hereby give their consent as required by Standing Order 22 of the House of Commons in relation to private Bills to the Corporation to construct such doublings of the existing tramway as the Corporation may upon application to Parliament be authorised to lay down.

In witness whereof the Corporation have caused their corporate common seal and the council have caused their common seal to be hereunto affixed the day and year first hereinbefore written.

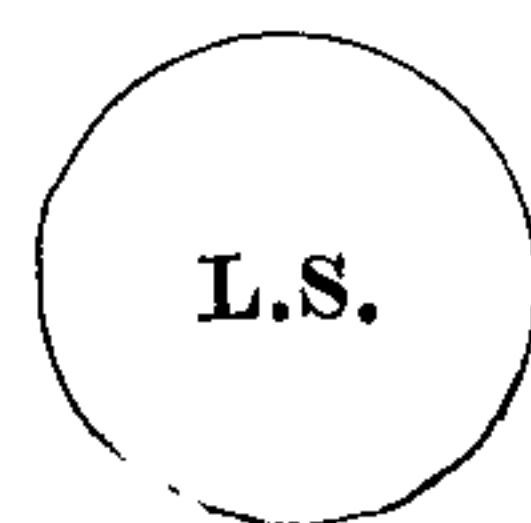
The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax }
was hereunto affixed in the presence of

W. H. INGHAM Mayor.
PERCY SAUNDERS Town Clerk.



The common seal of the Shelf Urban District Council }
was hereunto affixed in the presence of

JOHN THOMAS KELLETT Chairman.
JAMES CROWTHER Acting Clerk.



A.D. 1915. MEMORANDUM OF AGREEMENT made this twelfth day of January
Stamp Ten
Shillings.
Duplicate
Five
Shillings.
one thousand nine hundred and fifteen between the MAYOR
ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF
HALIFAX (hereinafter called "the Corporation") of the one
part and the LUDDENDEN FOOT URBAN DISTRICT COUNCIL
(hereinafter called "the council") of the other part.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 9 authorised by the Halifax Corporation Act 1900 and Tramways Nos. 13 and 15 authorised by the Halifax Corporation Act 1902 parts of which tramways are situate in the urban district of Luddenden Foot which district adjoins the borough of Halifax and such parts of the said tramways are hereinafter referred to as "the existing tramways":

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of twenty-one years from the time when the Corporation were empowered as aforesaid to construct the existing tramways or within six months after the expiration of every subsequent period of seven years to require the Corporation to sell and the council may acquire the existing tramways accordingly:

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to construct certain other tramways both within and without the borough of Halifax:

And whereas in connection with the said application and in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be amended as hereinafter provided:

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say):—

1. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 and the before-mentioned local Acts the council shall not exercise any of their powers under the said section with respect to the existing tramways prior to the expiration of a period of thirty-one years from the date of the Royal Assent to the Act confirming this agreement. Should the council desire at the expiration of such period of thirty-one years or of any subsequent period of seven years to acquire the existing tramways and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the existing tramways the existing tramways shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof. And it is hereby declared that the before-mentioned section 43 shall

be read and have effect in relation to the existing tramways as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed. A.D. 1915.

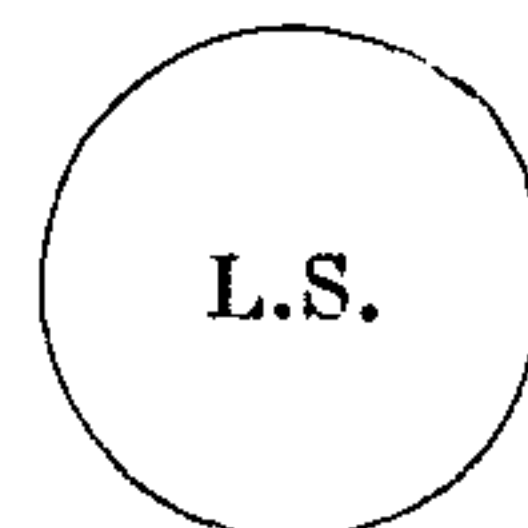
2. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will render to the Corporation all assistance they can to support such application and will supply such information and give evidence in connection therewith as may be required.

3. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein it shall be competent for either party to withdraw from the agreement.

In witness whereof the Corporation have caused their corporate common seal and the council have caused their common seal to be hereunto affixed the day and year first hereinbefore written.

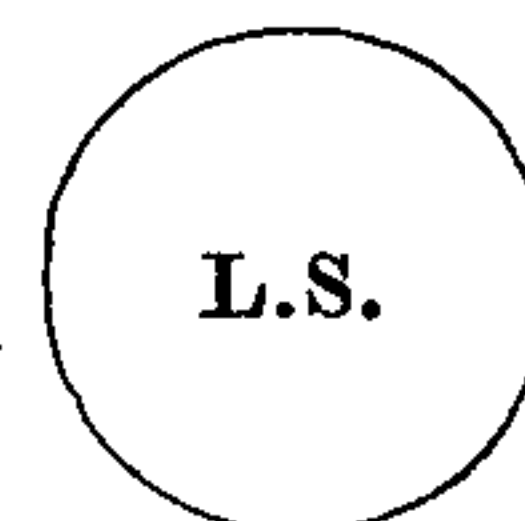
The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax
was hereunto affixed in the presence of

W. H. INGHAM Mayor.
PERCY SAUNDERS Town Clerk.



The common seal of the Luddenden Foot Urban
District Council was hereunto affixed in the pre-
sence of

JONATHAN NAYLOR Chairman.
C. W. MOSES Clerk.



MEMORANDUM OF AGREEMENT made this twelfth day of January one thousand nine hundred and fifteen between the MAYOR ALDERMEN AND BURGESSES of the COUNTY BOROUGH OF HALIFAX (hereinafter called "the Corporation") of the one part and the MYTHOLMROYD URBAN DISTRICT COUNCIL (hereinafter called "the council") of the other part.

Stamp Ten
Shillings.
Duplicate
Five
Shillings.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 9 authorised by the Halifax Corporation Act 1900 parts of which tramway are situate in the urban district of Mytholmroyd and such parts of the said tramway are hereinafter referred to as "the existing tramways":

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of 21 years from the time when the Corporation were empowered as

A.D. 1915. — aforesaid to construct the existing tramways or within six months after the expiration of every subsequent period of seven years to require the Corporation to sell and the council may acquire the existing tramways accordingly :

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to construct certain other tramways both within and without the borough of Halifax :

And whereas in connection with the said application and in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be amended as hereinafter provided :

And whereas the council have requested the Corporation to run a service of motor omnibuses in connection with the Corporation's tramway undertaking along the following route (hereinafter referred to as "the said route") namely from a point commencing in Burnley Road at the junction of Burnley Road and New Road passing thence along New Road Brook Street and Rochdale Road and terminating in Rochdale Road at a point opposite (or thereabouts) the north-east corner of Church Bank Mills Crag Vale which said route is wholly situate in the district of the said council :

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say) :—

1. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) power to run motor omnibuses along the said route in connection with the Corporation's existing tramways in the district of the council.

2. In the event of the Corporation obtaining the necessary powers to enable them so to do they shall commence to run a service of motor omnibuses in connection with their existing tramways along the said route not later than the Monday following the Easter Sunday next after the date of the Royal Assent to the Act confirming this agreement and shall subject as hereinafter mentioned continue to run such service.

3. The borough treasurer of Halifax shall so far as it is possible keep separate and proper accounts with respect to the working and running of the said motor omnibuses which accounts shall be open to the inspection of the council and if and when it is shown that the expenditure (inclusive of sinking fund and interest on capital outlay and proper allowances for depreciation and renewals) exceeds the amount of the income from the same the council shall and they hereby agree from time to time to pay the Corporation within one month after written demand the amount of such excess Provided that the council shall not be called upon or be liable to pay under this

clause any sum or sums in respect of the running of the said motor omnibuses for any period after the first twenty-four months' running thereof nor any sum or sums exceeding in the aggregate the sum of twenty pounds The confirmation of this agreement by Parliament as hereinafter mentioned shall be deemed to give the council full authority to pay such moneys out of the district fund and general district rate of the council and any payment shall not be questioned by any person whomsoever. A.D. 1915.

4. The Corporation shall in no way either under this agreement or otherwise be liable to continue to run a service of motor omnibuses along the said route after it is shown by the accounts mentioned in clause 3 hereof that during the running of the said motor omnibuses in pursuance of this agreement the expenditure as mentioned in such clause has exceeded the income (without taking into consideration any payment or payments by the council as aforesaid) to the extent of twenty pounds.

5. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 and the recited local Act the council shall not exercise any of their powers under the said section with respect to the existing tramways prior to the expiration of a period of 31 years from the date of the Royal Assent to the Act confirming this agreement Should the council desire at the expiration of such period of 31 years or of any subsequent period of seven years to acquire the existing tramways and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the existing tramways the existing tramways shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the existing tramways or any future doubling or doublings thereof as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

6. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will at the request of and at the cost and expense of the Corporation render to the Corporation all assistance they can to support such application and will supply such information and give evidence in connection therewith as may be required.

7. In the event of any difference arising between the parties hereto as to the intent and meaning of this agreement or as to any matter or thing arising thereout or in connection therewith the same

A.D. 1915. shall be settled in manner provided by section 33 of the Tramways Act 1870.

8. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein it shall be competent for either party to withdraw from the agreement.

In witness whereof the Corporation have caused their corporate common seal and the council have caused their common seal to be hereunto affixed the day and year first hereinbefore written.

The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax
was hereunto affixed in the presence of

W. H. INGHAM Mayor.

PERCY SAUNDERS Town Clerk.

L.S.

The common seal of the Mytholmroyd Urban District
Council was hereunto affixed in the presence of

THOS. ASHTON Chairman.

JNO. E. CRAVEN Clerk.

L.S.

Stamp Ten
Shillings.
Duplicate
Five
Shillings.

MEMORANDUM OF AGREEMENT made this twelfth day of January one thousand nine hundred and fifteen between the MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HALIFAX (hereinafter called "the Corporation") of the one part and the SOWERBY BRIDGE URBAN DISTRICT COUNCIL (hereinafter called "the council") of the other part.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 22 authorised by the Halifax Corporation Act 1900 parts of which tramway are situate in the urban district of Sowerby Bridge which district adjoins the borough of Halifax and such parts of the said tramway are hereinafter referred to as "the existing tramways":

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of twenty-one years from the time when the Corporation were empowered as aforesaid to construct the existing tramways or within six months after the expiration of every subsequent period of seven

years to require the Corporation to sell and the council may acquire the existing tramways accordingly: A.D. 1915.

And whereas the Corporation intend to apply in the session of Parliament (1914-15) for power to construct certain other tramways both within and without the borough of Halifax:

And whereas in connection with the said application and in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be amended as hereinafter provided:

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say):—

1. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 or the recited local Act or otherwise the council shall not exercise any of their powers under the said section with respect to the existing tramways save as in this agreement hereinafter provided.

2. If the council desire at the expiration of a period of thirty-one years from the date of the Royal Assent to an Act confirming this agreement or of any subsequent period of seven years to acquire the existing tramways and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the existing tramways the existing tramways shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the existing tramways as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

3. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will at the cost of the Corporation render to the Corporation all assistance they can to support such application and will supply such information and give evidence in connection therewith as may be required.

4. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein it shall be competent for either party to withdraw from the agreement.‡

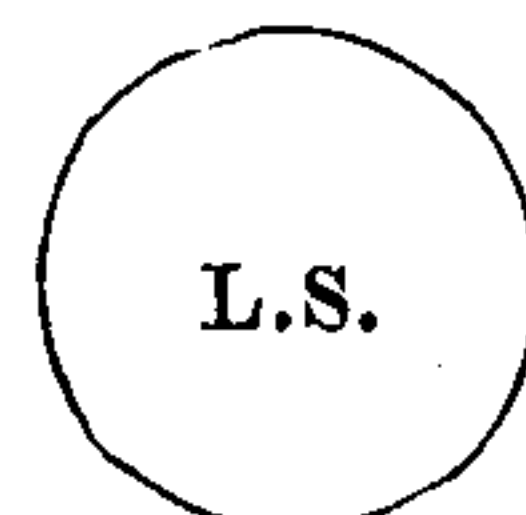
A.D. 1915.

In witness whereof the Corporation have caused their corporate common seal and the council have caused their common seal to be hereunto affixed the day and year first hereinbefore written.

The corporate common seal of the mayor aldermen and burgesses of the county borough of Halifax was hereunto affixed in the presence of

W. H. INGHAM Mayor.

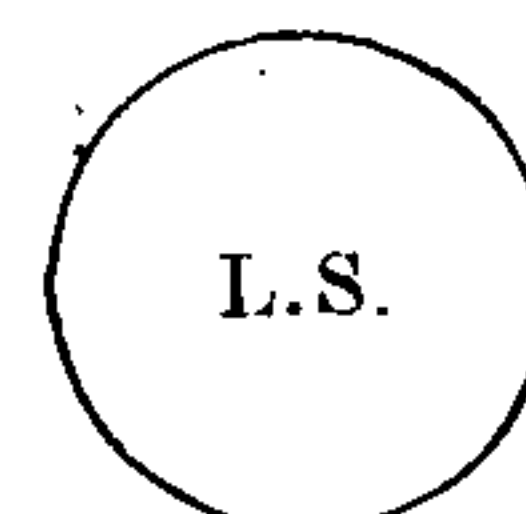
PERCY SAUNDERS Town Clerk.



The common seal of the Sowerby Bridge Urban District Council was hereunto affixed in the presence of

WILLIAM GLEDHILL Chairman.

LEWIS RHODES Clerk.



Stamp Ten
Shillings.
Duplicate
Five
Shillings.

MEMORANDUM OF AGREEMENT made this sixteenth day of February one thousand nine hundred and fifteen between the MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF HALIFAX (hereinafter called "the Corporation") of the one part and the SOWERBY URBAN DISTRICT COUNCIL (hereinafter called "the council") of the other part.

WHEREAS the Corporation are the owners of the Halifax Corporation tramways undertaking comprising (inter alia) Tramway No. 22 authorised by the Halifax Corporation Act 1900 part of which tramway is situate in the urban district of Sowerby and such part of the said tramway is hereinafter referred to as "the existing tramway":

And whereas by virtue of section 43 of the Tramways Act 1870 the council are empowered within six months after the expiration of a period of twenty-one years from the time when the Corporation were empowered as aforesaid to construct the existing tramway or within six months after the expiration of every subsequent period of seven years to require the Corporation to sell and the council may acquire the existing tramway accordingly:

And whereas the Corporation have consented and intend to apply in the session of Parliament (1914-15) for power to run motor omnibuses (inter alia) in the district of the council in connection with or extension of the existing tramway and to construct certain doublings of the existing tramway:

And whereas in the interests of the parties hereto and of the tramway communication in the district it is desirable that the before-recited provision with respect to the purchase by the council should be

amended and it has been agreed in relation to the before-mentioned A D. 1915.
matters as hereinafter provided :

Now therefore it is hereby mutually agreed by and between the council and the Corporation as follows (that is to say):—

1. That notwithstanding anything contained in section 43 of the said Tramways Act 1870 or the recited local Act or otherwise the council shall not exercise any of their powers under the said section with respect to the existing tramway or any future doublings thereof save as in this agreement is hereinafter provided.

2. If the council desire at the expiration of a period of thirty-one years from the date of the Royal Assent to an Act confirming this agreement or of any subsequent period of seven years to acquire the tramways within their district and give to the Corporation six calendar months' previous notice in writing under the hand of the clerk for the time being of the council of such their desire and requiring the Corporation to sell the tramways the same shall upon the expiration of such notice be sold to the council upon the terms provided by the said Tramways Act 1870 or any subsequent modification thereof And it is hereby declared that the before-mentioned section 43 shall be read and have effect in relation to the existing tramway and any future doublings thereof as if the same had been one tramway and as if the periods last mentioned in this clause had been inserted therein in lieu of the periods in the said section prescribed.

3. This agreement shall be deemed to be for all purposes the consent of the council to the running of motor omnibuses in the district of the council by the Corporation and such doublings of the existing tramway as the Corporation may upon application to Parliament be authorised to lay down Such consent to the running of motor omnibuses to be without prejudice to the right of the council to equip and run motor omnibuses in their district.

4. The Corporation shall apply for and use their best endeavours to obtain in the session of Parliament (1914-15) confirmation of this agreement and the council will render to the Corporation all assistance they can to support such application and other the aforesaid applications of the Corporation to Parliament and will at the request and cost of the Corporation supply such information and give such evidence in connection therewith as may be required.

5. This agreement is made subject to the confirmation of Parliament and also subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein either party may withdraw from the agreement.

[Ch. xxvi.] *Halifax Corporation Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915.

In witness whereof the Corporation have caused their corporate common seal and the council have caused their common seal to be hereunto affixed the day and year first hereinbefore written.

The corporate common seal of the mayor aldermen
and burgesses of the county borough of Halifax }
was hereunto affixed in the presence of

L.S.

W. H. INGHAM Mayor.

PERCY SAUNDERS Town Clerk.

The common seal of the Sowerby Urban District
Council was hereunto affixed in the presence of }

L.S.

GEO. R. STANSFELD Chairman.

EDGAR BOOTH Clerk.

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